

Calendar Line # 2
Case Name Esquivel Living Trust
Case No. 25PR201267
Motion to Compel I. <u>BACKGROUND</u> Petitioner Alberto Esquivel (“Petitioner”), co-trustee of the Esquivel Living Trust, initiated this case by filing a petition to remove his co-trustee Esther Lechuga, also known as Esther Esquivel Martinez (“Respondent”). The petition also seeks an accounting and surcharge of Respondent for alleged breaches of trust. Respondent opposed the petition. Currently before the court is Petitioner’s motion to compel further responses to her form and special interrogatories and request for production of documents. Respondent has opposed the motion and Petitioner has filed a reply. II. <u>DISCUSSION</u> A. PROCEDURAL BACKGROUND Petitioner served his form interrogatories, set one; special interrogatories, set one; and requests for production of documents on Respondent on February 9, 2026. On March 16, 2026, Respondent served her responses and produced some documents. On April 9, 2026, Petitioner sent Respondent a meet and confer letter. When Petitioner received no response to that letter, he submitted for filing a motion to compel on May 4, 2026. Respondent’s opposition to the motion appears to be responding to the May 4 version of the motion to compel as it states that the instant motion was filed on that date and it makes arguments related to requests for admission, which are not at issue in the instant motion. She also contends that Petitioner’s separate statement does not provide the text of her amended responses but the version of the separate statement before the court does include the amended responses. Respondent informed Petitioner that she had never received the meet and confer letter and Petitioner cancelled the motion before it was electronically filed. The parties ultimately agreed that Respondent would respond to Petitioner’s meet and confer letter by July 13, 2026 and the deadline to file the instant motion was extended to August 5, 2026. Respondent served a response to Petitioner’s meet and confer letter and amended responses to the discovery requests at issue on July 17, 2026. Petitioner filed the instant motion on August 5, 2026. B. THE MOTION MUST BE CONTINUED FOR PARTIES TO MEET AND CONFER Petitioner seeks further responses to his form interrogatories 2.6 and 17.1; special interrogatories 2, 3, 5-9, 13, 18, 20-22, 25-26, and 35; and requests for production of documents 3, 5, 10, 12, 17, 20-26, 29-31, and 33; and seeks production of responsive documents. In opposition to the motion, Respondent contends that Petitioner failed to adequately meet and confer because she did not meet and confer “in person, by telephone, or by videoconference” nor did she meet and confer regarding the necessity of a court reporter to report the hearing on the motion as required by Code of Civil Procedure section 2016.040. Section 2016.040 provides in relevant parts: (a) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion. (b) The declaration shall also include whether the moving party has met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to

report the hearing on the motion. This subdivision does not prevent the retention of a certified shorthand reporter.

(Code Civ. Proc., § 2016.040; See also, Code Civ. Proc., §§ 2030.300, subd. (b)(1) [requiring meet and confer declaration under Code of Civil Procedure section 2016.040 for motion to compel further responses to interrogatories]; 2031.310, subd. (b)(2) [same for motion to compel further responses to requests for production of documents]).

Petitioner counters that meeting and conferring via the methods specified in section 2016.040 would not have allowed him to avoid filing of the instant motion. However, no meet and confer occurred after the service of Respondent's amended responses. Further, it does not appear that Petitioner's meet and confer letter addressed form interrogatory 17.1 in the context of each of the requests for admission at issue. Specifically, the meet and confer letter addressed form interrogatory 17.1 only in the context of requests for admission 10, 12, 20, and 29(d); whereas the separate statement filed in connection with the instant motion appears to be seeking a further response to form interrogatory 17.1 as it relates to requests for admission 10, 12, 20, 28, 29, 30, and 31. (Compare Declaration of Leila M. Sokolov in Support of Motion to Compel ("Sokolov Decl."), Ex. M, p. 12 with Separate Statement, pp. 6:20-9:4). Moreover, Respondent's meet and confer letter served with the amended responses does not address all aspects of Petitioner's letter. (See Sokolov Decl., Ex. O). Accordingly, it appears that there may be some room for further productive discussion.

III. CONCLUSION

Based on the foregoing, the motion to compel is hereby CONTINUED. The parties are ordered to meet and confer "in person, by telephone, or by videoconference" regarding Respondent's amended responses served on July 17, 2026. Five court days prior to the continued hearing on this matter, the parties shall file a joint statement addressing their meet and confer efforts and indicating whether the motion may be taken off calendar. If the motion must remain on calendar, the parties must address which, if any, of the discovery requests at issue are being withdrawn from the court's consideration. Counsel are ordered to appear at the hearing on this motion, either in person or electronically, to select a new hearing date. The Court will prepare the formal order.